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Argument for Defendant in Error.

of the peace, but any conduct destructive of peace and good morals is sufficient to establish the offense. *People v. Rounds*, 35 N. W. Rep. 77, 79; *S. C.*, 67 Michigan, 482; *Davis v. Burgess*, 20 N. W. Rep. 540, 542; *S. C.*, 54 Michigan, 514; Bishop's *Crim. Law*, 7th ed., § 945; *Dunn v. The Queen*, 12 Ad. & Ellis, N. S. 1031, 1039, note; *O'Connell v. The Queen*, 11 Clark & Fin. 155, 251.

Conspiracy to commit subornation of perjury is an offense against the United States. *Clune v. United States*, 159 U. S. 595; *Callan v. Wilson*, 127 U. S. 540, 555.

The indictment is sufficient; it states the object of the conspiracy with all the precision and detail as to time, place, and other details that are necessary in indictments for the commission of such offense. *Ching v. United States*, 118 Fed. Rep. 540; *United States v. Stevens*, 44 Fed. Rep. 141; *United States v. Wilson*, 60 Fed. Rep. 890.

When the object of the conspiracy is an act in itself unlawful, the means by which it was to be accomplished need not be set out in the indictment. *Rex v. Eccles*, 1 Leach's Crown Cases, 274; *Thomas v. People*, 113 Illinois, 531; *People v. Clark*, 10 Michigan, 310; *People v. Bird*, 126 Michigan, 631; *People v. Arnold*, 46 Michigan, 268, 271. See also *Pettibone v. United States*, 148 U. S. 197, 203.

While not provided by the express words of the statute, the Timber and Stone Act, in purpose and intent, prohibits an applicant, at any time before the completion of his entry, from making any contract or agreement by which the title he may acquire shall inure to the benefit of any other person, otherwise the expressed intention of the statute that the lands applied for should not inure to the benefit of any other person, and that it should not be sold in quantities exceeding one hundred and sixty acres to any one person, would be defeated. *United States v. Budd*, 144 U. S. 163.

As it is the policy of the Timber and Stone Act to withhold the power of alienation from the person desiring to purchase the land until he has completed his entry, the Land Commis-